

Public by Law, and You Still Cannot Have It

Fifty-one jurisdictions, one downloadable voter file, and the only instrument in this book that cannot be handed to you

84-355 Democracy's Data

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This book has now gone and got three kinds of data, and each was hard in a different way.

The census gives you too much: three open routes, and more than a dozen published figures for a single county's population, no two of them answering quite the same question. Election returns have no door at all — no federal agency counts votes, so you assemble fifty-one publications yourself.

The voter file is the third kind, and it is the one the other two do not prepare you for. **The list is public by law in every state.** There is no argument about that. And you still, mostly, cannot have it.

01 Where the addresses come from

The National Conference of State Legislatures keeps a fifty-state survey of who may obtain a voter list, what it contains, what is confidential and what it may be used for. For each jurisdiction it also carries a link labelled "<State> Access/Purchase List", pointing at that state's own page.

Those **51 links are the addresses used here.** On **2026-08-13** all 51 of those pages were opened, one after another. What happened at each was written down: whether it answered at all, what it turned out to be, how big it was, and whether it offered the file for download.

The division of labour matters and holds throughout. **The legal facts in this chapter are NCSL's**, and are cited to NCSL. **The retrievability facts are measured here**, and can be re-measured by anyone.

Before you read on, commit to a number. Every state's registration list is a public record. Fifty-one jurisdictions each publish a page telling you how to get theirs. **On how many of those pages can you actually download the file?** Write the number down.

02 The funnel

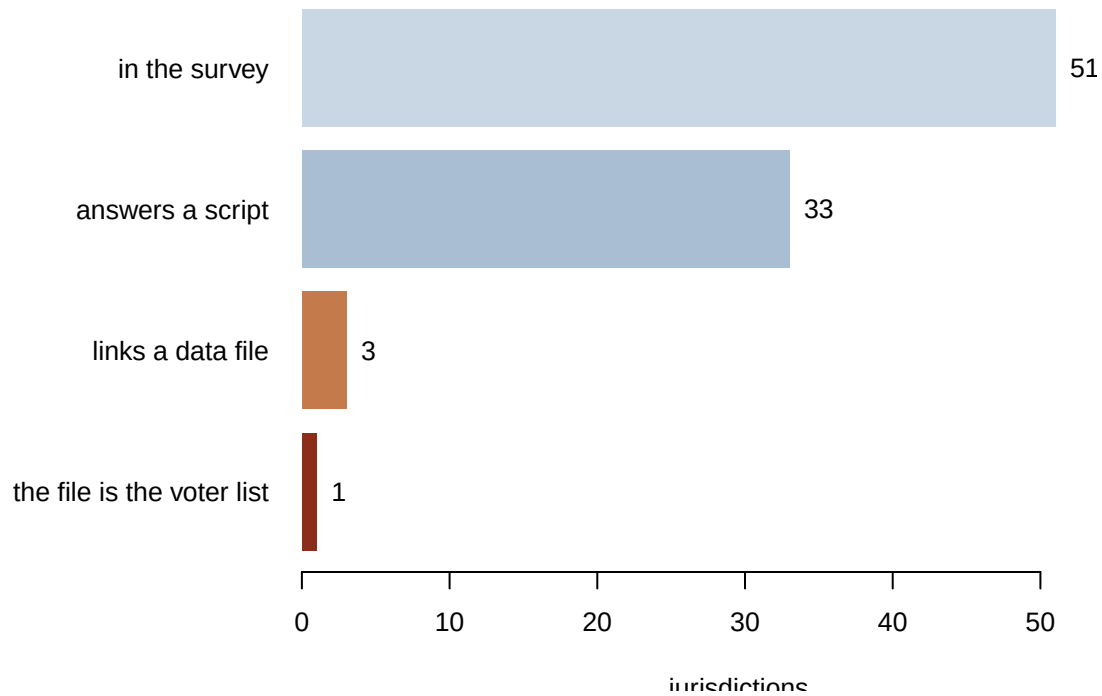


Figure 1. What happened at fifty-one addresses on one day.

Stage	States
Jurisdictions in the survey	51
Address answers a script	33
...and links a data file of any kind	3
...and that file is the voter list	1

33 of 51 answered. 10 refused a script outright with HTTP 403 — the page exists and a person with a browser can read it, but an automated request is turned away. And 8 did not resolve at all:

State	Outcome
Arkansas	dead link
Colorado	no connection
Delaware	no connection
Idaho	dead link
Louisiana	dead link
South Dakota	dead link
Utah	no connection
West Virginia	dead link

That is **15.7% of the survey's own links** dead or unreachable on the day they were tried. The survey is careful work; the pages underneath it move.

03 Asking is the normal case

Of the 33 addresses that answered, here is what they are:

The page...	States (of 33)
presents an application or request form	26
mentions a fee, a cost or a purchase	23
asks you to log in	11
is a PDF form to print and post	6

26 of 33 present an application or a request form, 23 mention a fee or a purchase, 11 want you to log in, and 6 are a PDF to print and post. This is the ordinary condition of the American voter file: not secret, not published — **applied for**.

04 Three links, and what is behind them

Only 3 of the answering pages link a data file of any kind. A hyperlink ending in `.txt` is a fact about HTML, so all three were opened:

State	What the link actually is	Is it the voter list?	Bytes
North Carolina	ncvoter_Statewide.zip – the statewide registration file	yes	519,773,993
Maine	an absentee-ballot file: one row per absentee request, with party and status	no	9,485,160
Virginia	a candidate and committee directory	no	–

Two of the three are not the voter file. Virginia's is a directory of candidates and committees. Maine's has one row per absentee ballot, carrying request type, issue date, return date and status. That is a genuine and interesting file, and it is not a registration list.

So the answer to the question above is **1**. One jurisdiction of fifty-one puts its statewide voter list at an address a script can fetch: **North Carolina**, 496 MB, no login, no form, no fee. It is the file the vote-targeting chapter is built on, and now you know why that chapter is about North Carolina.

05 The file nobody asked about

Maine's is worth a paragraph of its own, because it is the opposite failure.

Nothing here was looking for absentee records. The scan asked every state for its *registration list*. Maine's page answered with **9,485,160 bytes** of person-level absentee data: one row per ballot, carrying a voter record number, a party, a municipality, and the date the ballot came back. It is posted openly, requires nothing of the person downloading it, and is not what the page was asked for.

The lesson is not that Maine did something wrong; the state publishes what its law tells it to publish. It is that **"what is available" and "what you went looking for" are different questions**, and a scan that only counted whether a link existed would have scored Maine as a success.

06 What it costs, and why nobody can tell you exactly

The price of a statewide voter file runs from nothing to tens of thousands of dollars, and the two published tables of it disagree. 23 of the pages above mention a fee, and nothing measured here says how much. Two compilations do name them, for all fifty-one jurisdictions: the U.S. Election Assistance Commission, and Ballotpedia as of July 2026. Read side by side they are a lesson in what a price is.

What the two tables say	Jurisdictions
Both give one plain price, and it is the same	25
Both give one plain price, and it is not	18
The 2026 price is not a single amount	8

They agree on 25 jurisdictions and differ on 18 of the 43 where both print one plain number. Some of those differences are a few dollars. Others are not.

State	EAC, 2020	Ballotpedia, 2026
Alabama	\$37,000	\$1,000
Nevada	\$20,000	\$0
California	\$15,000	\$100
Indiana	\$0	\$5,000
New Mexico	\$5,215	\$600
Kentucky	\$2,000	\$4,000

Alabama is the extreme case, and it matters more than the others because it is the number everybody quotes. The federal document opens by saying the price of a statewide voter file ranges from \$0 to \$37,000, and that upper figure is Alabama's. The 2026 compilation prices the same list at \$1,000.

The federal table prints no date anywhere on it. Eleven pages, a stable government address, no year. The file itself records one: it was created on 30 October 2020, which the

chapter can say only because the date is in the document's own properties rather than on any page a reader sees. A price list with no date on it does not look stale, and this one is six years old.

And a price is often not a price. For 8 jurisdictions the 2026 table cannot give a single amount, because the state does not charge one.

State	EAC, 2020	What the state actually charges
Arizona	\$516	\$328.13 plus \$0.0000625 per record
Michigan	\$23	Cost varies based on time taken to produce report
Montana	\$1,000	\$5,000 for a year subscription
New Hampshire	\$275	\$25 for a digital copy, \$25 plus \$0.50 per thousand names in excess of 2,500 plus shipping for physical copies
Tennessee	\$2,500	\$75 for digital or \$30 per 1,000 voters for paper list
Texas	\$1,279	\$328.13 + \$0.0000625 per voter
Virginia	\$5,000	Minimum cost \$33, voter list pricing
West Virginia	\$500	\$1000 for an election cycle subscription

Each of those is a rule rather than a figure, and the federal table has one number for every one of them. Arizona and Texas charge by the record. Michigan charges for staff time, Tennessee prices paper and digital differently, and two states sell a subscription rather than a file. Flatten any of that into a dollar amount and you have made the amount up.

One row of these tables this chapter can settle itself. The EAC prices North Carolina at nothing and the 2026 table at \$25. The scan above went and got the file: 496 MB, no login, no form, nothing paid. On that one jurisdiction the measurement beats both compilations, which is the whole argument for making one.

07 What this book had to do

This chapter cannot end with instructions, because this book did not follow any.

Four chapters in this book use a voter file: voter-files, false-matches, bisg-check and rpv. It is a Georgia county extract that arrived as working data in a redistricting case. It was not downloaded. It could not have been: Georgia is one of the 33 that answers with a form.

Two consequences, and both are stated here rather than hidden:

Those four chapters do not rebuild anywhere but on the machine that made them. Their scripts read an absolute path into a private working directory. Every other chapter in this book fetches its own data or reads a committed capture; these four cannot, because the file is a list of named people and is not ours to redistribute. The ANES chapters have the same shape for a gentler reason. That survey asks people to take the file from ANES, and those chapters say so in the same way.

This is the only instrument in the book that cannot be handed to a reader. Everything else here is public, free and re-fetchable: the census files, the returns, the FEC filings,

the roll calls. The voter file is public too, in the strict legal sense that made it obtainable in litigation. It is the one where that word does not mean you can have it.

08 What this chapter cannot tell you

It does not price anything itself. The two tables above are other people's counting, re-produced and compared. Nothing here was paid, and no state was asked what it charges. The amounts sit in statutes, fee schedules and request forms. Two careful compilations went to those sources and came back with different answers for 18 jurisdictions, which is the honest reading of the section above.

It is not a legal summary. Who may request a list, what a state redacts, and what uses are permitted are NCSL's subject and are cited to NCSL. Restating a statute is exactly the kind of claim this book asks you not to take on trust, and it is not taken on trust here.

It is one day. The scan is dated 2026-08-13, and 15.7% of the links were already broken when it ran, which tells you how fast this surface moves. The results are frozen for that reason: a chapter whose numbers change every time somebody knits it is reporting the weather, not a measurement. Re-running the scan and reading what changed would itself be a finding.

And a 403 is not a refusal of access. Ten states turned away an automated request. A person with a browser may well be able to read those pages and follow the process on them. What is measured here is what a *script* meets, which is the honest scope of a scan and not a claim about what a citizen can do.

09 Sources

- National Conference of State Legislatures. *Access To and Use Of Voter Registration Lists*. The fifty-state survey, its five narrative columns, and the per-jurisdiction "Access/Purchase List" links used as the scan's addresses. <https://www.ncsl.org/elections-and-campaigns/access-to-and-use-of-voter-registration-lists>
- The 51 state and District election-agency pages that survey links to, each requested on 2026-08-13. Every address, status, content type and byte count is recorded per jurisdiction alongside this chapter.
- U.S. Election Assistance Commission. *Availability of State Voter File and Confidential Information*. Eleven pages, captured 29 August 2026. The price and availability table used above is its page 2. **The document prints no date**; the October 2020 given for it above is the creation date recorded in the file's own properties. Its own source line reads "National Conference of State Legislatures, United States Elections Project, State Election Officials", so it is a compilation of compilations rather than a federal collection. https://www.eac.gov/sites/default/files/voters/Available_Voter_File_Information.pdf
- Ballotpedia. *Availability of state voter files*, the version dated July 2026, captured 29 August 2026. Fifty-one jurisdictions with a price column that is prose rather than a number, which is why it is kept as prose here. https://ballotpedia.org/Availability_of_state_voter_files
- North Carolina State Board of Elections. *Statewide voter registration file*, `ncvoter_Statewide.zip`, 496 MB. <https://s3.amazonaws.com/dl.ncsbe.gov/data/>

- Maine Department of the Secretary of State. Absentee-ballot file, posted as a plain-text export, 9,485,160 bytes.
- Help America Vote Act of 2002, § 303, which required every state to build a single computerised statewide list and said nothing about what it should contain – the condition the voter-files-source chapter takes as its subject.

The data itself

Every figure above is drawn from these tables. They are plain CSV, they open in a spreadsheet, and they are yours to take further.

`claimed_downloads.csv`, `funnel.csv`, `link_rot.csv`, `page_shape.csv`, `price.csv`

Your turn

None of these is answered above, and every one can be answered from the tables you just opened.

- `funnel.csv` narrows fifty-one jurisdictions down stage by stage. Read it top to bottom. At which stage does the public's access actually disappear?
- `page_shape.csv` counts how many official pages present a form rather than a file. What is the difference, for a citizen, between public and available?
- `link_rot.csv` records what happened at each address. Count the dead ones. What does that say about how these files are maintained?
- `claimed_downloads.csv` lists the links that really do hand you a file, with bytes. Only a few states do this. Work out what someone studying all fifty would have to do instead.
- `price.csv` puts two published price tables side by side. Sort by the gap between `eac_price_usd` and `bp_price_usd`. Which jurisdictions would you have to go and check yourself before quoting either number?
- `price.csv` marks the jurisdictions whose price is not a single amount in `bp_price_is_one_number`, and `bp_price` says what they charge instead. Read those rows. What would a researcher have to decide before putting any one of them in a column of dollars?

WHY THIS DATA CANNOT BE FETCHED AGAIN

The dataset behind this chapter is a measurement of one particular day, and that day cannot be fetched again – not by you, and not by any assistant.

WHY NOT. It is a scan: the National Conference of State Legislatures' 50-state survey of voter-list access carries, for each state and the District of Columbia, a link to that state's own "how to get the list" page. All 51 of those addresses were opened on 13 August 2026, and what came back was recorded – status codes, content types, byte counts, whether the page links an actual data file. Send a normal browser User-Agent header if you repeat this: a bare script is refused by more of these sites than a browser is, and that difference is a

property of the scan rather than of the states. State websites are rebuilt, moved and re-fenced all

the time; 8 of the survey's own links already failed to resolve on that first pass. Running the same requests today measures a different day, which is exactly why the original answers were kept.

WHAT EXISTS INSTEAD. The survey itself is public and current:

<https://www.ncsl.org/elections-and-campaigns/access-to-and-use-of-voter-registration-lists>

An assistant can take its 51 links and request them all today. The result will be a legitimate new scan – differences from the numbers below are real changes in what the states serve, and finding them is more interesting than reproducing the old ones.

THE PRICES, HOWEVER, CAN BE FETCHED. Two published tables give a price for all 51 jurisdictions, and both are open:

https://www.eac.gov/sites/default/files/voters/Available_Voter_File_Information.pdf

is the Election Assistance Commission's, with the state, availability and price table on its page 2. Read the creation date out of the PDF's own properties before using it, because nothing printed on the document says when it was written.

https://ballotpedia.org/Availability_of_state_voter_files is the other, dated on the page itself. Keep its price column as text rather than as a number: for several states the entry is a rule, such as a base charge plus a fraction of a cent per record, and reading it as a number quietly invents an amount. Then put the two side by side. The disagreement between them is the finding, not an error to resolve.

WHAT YOU CAN STILL CHECK. These numbers identify the 13 August 2026 scan; a rerun should land near them, not on them:

- 51 addresses, one per state plus the District of Columbia
- 33 answered normally, 10 refused a script with a 403, 5 were dead links, and 3 never completed a connection
- exactly 1 of the 51 published the voter list for open download:

North Carolina's statewide file, 496 MB, no login asked

- 8 of the survey's own links did not resolve – about one in six

On the two price tables, which you can fetch: both cover 51

jurisdictions. The federal one was created on 30 October 2020 and says

so only in its file properties, and its highest price is Alabama at 37,000 dollars, which the 2026 table puts at 1,000. Of the 43 jurisdictions where both give a single plain amount, they agree on 25 and differ on 18. For 8 jurisdictions the 2026 table gives no single amount at all. Land somewhere else on those counts and either a table has been revised or the price column has been read as a number when it is a sentence.